

		403.) This case is inapposite, as La Costa has not sought an order for it to release the funds to any party and, unlike in Zinnel, seeks to deposit the funds with the Court. Plaintiffs further argue that La Costa improperly seeks reimbursement for fees that go beyond pursuit of the interpleader and the requested fees should be reduced. The Court agrees that anticipated fees and costs that have not yet been incurred should not be included in the award but finds the remaining fees and costs to be proper. In light of the above, La Costa's Motion for Interpleader is GRANTED. La Costa is ordered to deposit with the court clerk the escrow funds of 958,843.27 less the escrow fees and costs in the amount of \$9,417.49 and attorney fees and costs in the amount of \$7,428.12. Upon the ordered deposit, La Costa shall be discharged from liability to either party and dismissed from this action. Moving party to give notice.
107	Child vs. Department of Motor Vehicles 25-01529954	Petition for Writ of Mandate On 11/26/2025 Petitioner Joshua Child filed an Alternative Writ of Mandate. On 5/20/2026 pursuant to Chambers Work- CMC, this Court set the Petition for Writ for 7/28/2026 and ordered Petitioner to give notice. (ROA 13). To date, there is nothing in the Court's file to indicate Plaintiff/Petitioner gave notice to Defendant of the hearing date. Furthermore, there is no certified administrative record before the Court (Govt. Code § 11523), or points and authorities in support of the Petition (Rules of Court, rule 3.1113). As such, the Court denies the writ of mandate.

108	Hernandez-Magana vs. Volkswagen Group of America, Inc. 24-01450948	Motion to Tax Costs Defendant Volkswagen Group of America, Inc. (“Defendant”) moves to strike or tax costs in plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana’s (“Plaintiffs”) Memorandum of Costs. Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation and shall be reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2)-(3).) “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the plaintiff.” (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698.) “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation.] If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) First, the Motion is GRANTED as to the \$295.00 late fee for January 28, 2026, as Plaintiffs concede that this cost was not reasonably incurred. As to the \$453.45 in costs for the July 2, 2025, notice of non-appearance, costs for taking, video recording, and transcribing necessary depositions are recoverable. (Code Civ. Proc., § 1033.5(a)(3)(A).) Thus, it is Defendant’s burden to show this cost to be unnecessary and unreasonable. Defendant argues it was unnecessary and unreasonable because Plaintiffs unilaterally noticed the deposition and Defendant timely objected. However, Defendant has not provided any evidence regarding its timely objection. Thus, Defendant has not met its burden as the objecting party to show that this
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